

19SMCV01908 19SMCV01908

County: los-angeles

Division: Civil Law and Motion

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Case Number: 19SMCV01908 Hearing Date: August 24, 2026 Dept: P

Tentative

Ruling

Gary Stiffelman

v. Stuart Rubin, et al., Case No. 19SMCV01908

Defendant

Stuart Rubin's Motion for Judgment Notwithstanding the Verdict

Hearing

Date: August 24, 2026

Background

This case

is about a hotel development gone wrong. Plaintiff Gary Stiffelman, as individual, trustee of the Stiffelman trust, and derivatively on behalf of Glenroy Coachella Holdings, LLC sues Defendants Stuart Rubin (Rubin), Joseph Rubin and Glenroy Coachella Holdings, LLC for fraud and negligent misrepresentation arising from a series of investments and a personal guarantee Stiffelman made into a failed luxury hotel development project.

In

February 2025, the Court heard Defendant Joseph Rubin's motion for summary judgment on Stiffelman's first, seventh and fourteenth claims for fraud in the inducement, negligent misrepresentation and unjust enrichment. Summary judgment was granted only to Plaintiff's fourteenth claim for just enrichment. (February 11, 2025, Minute Order.)

Between

February 2, 2026 and February 24, 2026, the Court held jury trial in this matter. The jury returned a verdict in favor of Plaintiff on his claims for breach of fiduciary duty, breach of contract, conversion, and unjust enrichment. On March 27, 2026, the Court entered judgment against defendant Rubin for \$5,950,333.00, plus interest, costs, and fees.

On April

3, 2026, Stiffelman filed and served notice of entry of judgment.

On April

20, 2026, defendant Rubin filed a notice of his intent to move for a new trial.

On April 30, 2026, defendant Rubin filed the memorandum of points and authorities. On May 11, 2026, Stiffelman filed opposition.

On April

20, 2026, Rubin filed the instant Motion for Judgment Notwithstanding the Verdict.

On May 27,

2026, after hearing, the Court denied Rubin's motion for a new trial. (May 27, 2026, Minute Order.)

On June

26, 2026, Rubin filed an appeal of the Court's judgment.

On August

11, 2026, Stiffelman filed an opposition to the motion for judgment notwithstanding the verdict.

As of

Wednesday, August 19, 2026, as of 11:50 A.M., no reply brief has been filed as to the motion for judgment notwithstanding the verdict.

Arguments

Rubin

argues that: (1) the jury's rejection of fraudulent concealment eliminated the only factual theory that could support wrongful conduct; (2) the record

established, at most, a contract-governed business dispute within a complex development project; (3) Stiffelman failed to prove causation; (4) the conversion finding cannot stand; (5) the unjust enrichment finding cannot stand; (6) the breach of contract verdict cannot stand in the absence of substantial evidence of a proven contractual violation causing recoverable direct damages; (7) the damages award is legally defective because it awards company-level losses in a direct action and duplicates recovery; and (8) when the whole record is examined, no reasonable trier of fact could have returned this verdict.

In

opposition, Stiffelman argues the following: (1) Rubin's JNOV motion is fatally procedurally defective; (2) the Court should deny the motion because Rubin cannot meet the strict burden required for a JNOV motion; (3) the argument that the rejection of fraud negates all liability is wrong; (4) Rubin's attempt to recast this case as a mere "business dispute" fails to negate liability; and (5) Rubin's causation and damages arguments improperly seek to reweight the evidence and ignore the record.

Legal

Standard- Motion for Judgment Notwithstanding the Verdict

"The

court, either before the expiration of its power to rule upon a motion for a new trial, either of its own motion, after five days' notice, or on motion of a party against whom a verdict has been rendered, shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the aggrieved party should have been granted had a previous motion been made." (Code Civ. Proc., § 629, subd. (a) [italics added].)

"A motion

for judgment notwithstanding the verdict shall be made within the period specified by Section 659 for filing and service of a notice of intention to move for a new trial." (Code Civ. Proc., § 629, subd. (b).) A court is limited to when it can rule on a motion for judgment notwithstanding the verdict. (Id.) "The court shall not rule upon the motion for judgment notwithstanding the verdict until the expiration of the time within which a motion for a new trial must be served and filed, and if a motion for a new trial has been filed with the court by the aggrieved party, the court shall rule upon both motions at

the same time.” (Id. [italics added].)

Thus,

“[t]he power of the court to rule on a motion for judgment notwithstanding the verdict shall not extend beyond the last date upon which it has the power to rule on a motion for a new trial.” (Code Civ. Proc., § 629, subd. (b).) “If a motion for judgment notwithstanding the verdict is not determined before that date, the effect shall be a denial of that motion without further order of the court.” (Id.)

Discussion

The Court

finds that the instant motion is procedurally defective and must be denied. A court only has 75 days “after service on the moving party by any party of written notice of entry of judgment” to rule upon a motion for new trial. (Code Civ. Proc., § 660, subd. (c).)

Thus, the

Court only had 75 days from April 3, 2026 (which is the date of mailing of notice of entry of judgment) to rule on the instant motion for judgment notwithstanding the verdict. Given that more than 75 days have elapsed since the mailing of notice of entry of judgment (and over 120 days have elapsed since such mailing based on the Court’s calculation), the Court cannot grant the instant motion. (Code Civ. Proc., § 629, subd. (b).)

Additionally,

since the motion for new trial has been denied, it follows that the Court did not rule on the motion for new trial and the instant JNOV motion at the same time. Accordingly, the Court cannot grant the motion. (Code Civ. Proc., § 629, subd. (b) “[I]f a motion for new trial has been filed with the court by the aggrieved party, the court shall rule upon both motions at the same time.”.)

Due to the

procedural defects with the motion, the Court must deny the motion pursuant to Code Civ. Proc., § 629, subd. (b).

As such,

the Court need not reach the arguments raised in support of the motion.

Conclusion

Defendant

Stuart Rubin's Motion for Judgment Notwithstanding the Verdict is DENIED.

Moving

party is ordered to give notice.